

Letter of Intent — Rezoning R-1 to R-2, "The Cottages at Arcade Springs"

DRAFT for owner and attorney review — prepared to City of Lilburn 2026 Application Instructions item (6) and Lilburn Zoning Ordinance 2023-603 §1003-4(5). Bracketed items marked VERIFY must be settled before filing. Every drawing referenced is DRAFT and NOT SEALED; the boundary survey, legal description, engineering and landscape sheets must be superseded by the sealed work of a Georgia registered land surveyor, professional engineer, architect and landscape architect.

Mohammed Awad 4541 Arcade Road SW Lilburn, Georgia 30047-3968 [phone: VERIFY] · [email: VERIFY]

2026-09-__

City of Lilburn Planning & Economic Development Department Attn: Reid Turner, Planning Director 340 Main Street Lilburn, Georgia 30047

RE: Letter of Intent — Application to rezone 4535, 4537, 4539 and 4541 Arcade Road SW (Parcels 6123 162, 6123 014, 6123 015 and 6123 033; 9.44 acres, Land Lot 123, 6th District) from R-1 to R-2 for a 55+ detached cottage-home community of 41 one-story homes

Dear Mr. Turner:

I respectfully submit this Letter of Intent in support of my application to amend the official zoning map of the City of Lilburn by rezoning the four parcels listed below from R-1 (Single-Family Residential) to R-2 (Medium-Density Residential) for a single-family cluster-cottage community to be known as The Cottages at Arcade Springs. The site plan, the architectural elevations and renderings, the typed legal description, the adjoining-owner list and the required forms accompany this letter. The sealed boundary survey is in progress and will be filed as soon as the surveyor releases it [survey delivery date: VERIFY with the Director whether the application may be accepted with the DRAFT metes-and-bounds description and the survey supplied before the Planning Commission hearing].

1. The applicant and the property

I am the applicant. I am the owner of record of Parcels 6123 033 and 6123 015 and the contract purchaser of Parcels 6123 014 and 6123 162 [contract status: VERIFY before filing]. The owners of record of Parcels 6123 014 and 6123 162 have executed the notarized Property Owner Certification attached to the application form [VERIFY].

Parcel (Gwinnett R6123 ###)	Address	Deeded acreage (2026 digest)	Owner of record	Current zoning
6123 033	4541 Arcade Road SW	0.99 ac	Mohammed Awad	R-1 (Lilburn)
6123 015	4539 Arcade Road SW	2.00 ac	Mohammed Awad	R-1 (Lilburn)
6123 014	4537 Arcade Road SW	2.00 ac	Santos C. Mendez and Lesvia Rosario Roblero de Leon	R-1 (Lilburn)
6123 162	4535 Arcade Road SW	4.45 ac	Santos C. Mendez and Lesvia Rosario Roblero de Leon	R-1 (Lilburn)
Assemblage		9.44 ac	Land Lot 123, 6th District, Gwinnett County	R-1

The application acreage is the deeded total of 9.44 acres. The Gwinnett County GIS parcel fabric computes 9.58 acres (417,174 SF); the sealed boundary survey governs [DRAFT metes and bounds pending RLS seal].

The assemblage is a single strip with its only public frontage on Arcade Road (about 237 feet of curved frontage, measured as a chord; 237.6 feet measured along the right-of-way line). It is approximately 235 feet wide at the Arcade Road right-of-way, widening to approximately 246 feet at the northwest end, and 1,722 feet deep on the northeast line and 1,757 feet deep on the southwest line. Two older houses stand on the land, and only one of them is near the front. The dwelling at **4541 Arcade Road** stands about 200 feet in from the right-of-way (footprint about 2,396 SF; 2,053 SF heated in the 2026 digest). The dwelling at **4535 Arcade Road stands about 1,200 feet back from the right-of-way**, on the ridge, on the alignment of the proposed lane (footprint about 4,568 SF; 4,267 SF heated with a basement) — it is a Phase-2 demolition standing on the lane, not a frontage structure. Earlier drafts of this application described both houses as standing near the front; that was wrong, and the corrected positions are shown on Sheet C-1.0 [building locations are from aerial-imagery footprints fitted to the site coordinates and must be located by the boundary survey: VERIFY]. Accessory structures stand near each dwelling; the balance of the strip is wooded.

31 privately owned parcels adjoin the site, all zoned R-1 in the City of Lilburn and all developed with single-family houses — the King David Manor lots along the northeast line, the Legends at Parkview lots (Village Green Court and Fieldhouse Circle)

along the southwest line, and three Nantucket Drive lots at the northwest end. The Gwinnett County Arcado Road right-of-way is the 32nd abutting ownership, so 32 notices are required. A Lilburn R-2 district (the Arcado Road Townhomes site) lies approximately 106 feet northeast of the front corner across 4531 Arcado Road.

2. The request

I request that the 9.44-acre assemblage be rezoned from R-1 to R-2 for the use listed in Lilburn Zoning Ordinance 2023-603 §602 (Use Table) as "Single-family (cluster-cottage, creative lot configuration)," which is a permitted use (P) in R-2. **No special use permit is requested and no variance is requested. One buffer reduction is requested** — a reduction of the 20-foot buffer to 18'-0" at a single point, where the southwest curb return of the entrance meets the Arcado Road right-of-way — and it is described and requested in Section 5 of this letter, as Application Instructions item (6) requires. The application is for the R-2 district subject to the **18 voluntary zoning conditions in Section 11**, which I ask the Mayor and City Council to attach to any approval.

The proposed development:

- **41 detached one-story cottage homes** on fee-simple lots, restricted to households with at least one member aged 55 or older under the federal Housing for Older Persons Act (42 U.S.C. §3607(b)(2)(C); 24 CFR §100.300–.308), offered as a voluntary condition and enforced by a recorded declaration of covenants. At 41 units the 80-percent test and the fractional-unit rule (24 CFR §100.305(a) and (g); $0.80 \times 41 = 32.8$, and the fraction counts into the 80 percent) require **at least 33 of the 41 units** to be occupied by at least one person aged 55 or older.
- **Gross density 4.34 dwelling units per acre** (41 units ÷ 9.44 acres; 4.28 du/ac on the 9.58-acre GIS area), against the R-2 maximum of 8 du/ac in Table 4.1 and the R-1 maximum of 4 du/ac. The corrected layout is 0.34 du/ac above the R-1 ceiling and a little over half the R-2 ceiling.
- **Two floor plans**, both 2 bedroom / 2 bath with a two-car garage recessed 5 feet behind the front wall and a covered front porch 6 feet deep (17'-0" × 6'-0" = 102 SF on both plans). Plan A "The Springbrook": L-shaped body 38'-0" × 51'-10" overall with the garage as a front wing, **1,406 SF conditioned**, 458 SF garage, 102 SF covered front porch, 72 SF uncovered rear patio (12'-0" × 6'-0"), 1,966 SF total under roof, maximum ridge **18'-6" above finished grade** (21 lots). Plan B "The Laurel": body 38'-0" × 57'-6", **1,492 SF conditioned**, 504 SF garage, 102 SF covered front porch, 84 SF covered rear porch (14'-0" × 6'-0", recessed under the main roof), 2,182 SF total under roof, maximum ridge **19'-8" above finished grade** (20 lots). Ridge heights are plate 9'-0" plus a 6-inch raised heel plus half the span at 8:12, measured from a finished floor 8 inches above finished grade. Both plans are far above the 1,000-SF minimum heated floor area for a cottage home in Table 4.1 and far below the 40-foot height maximum. Every home has a zero-step entry, 36-inch doors, a 5-foot turning circle in a bathroom, and blocking for grab bars.
- **Lots 50'-0" × 100'-0" = 5,000 SF** (41 lots — 14 on the southwest side and 27 on the northeast side; minimum, average and maximum all 5,000 SF, 205,000 SF of lot area in all), against the Table 4.1 cottage-home minimum lot size of 3,000 SF, minimum width of 50 feet and minimum depth of 100 feet. Each lot has 50 feet of frontage on the private lane (§319 requires 30 feet on an approved private street).
- **Exterior character:** fiber-cement lap and board-and-batten siding, brick or stone water table and porch piers, architectural shingle roofs — 8:12 main and front-wing gables, a subordinate 6:12 gable over the garage, and the front porch roofed by carrying the front-wing gable forward rather than by a shed — and three color schemes (warm white, sage, clay). Floor plans are Sheets A-1.1 and A-1.2; elevations of every street-visible side of both house plans are Sheets A-2.1 and A-2.2; the colors and materials board is Sheet A-2.3; the clubhouse, mail kiosk and entry monument are Sheet A-3.0; typical lots are Sheets A-4.0 and A-4.1 (Application Instructions item 11). **No wall signs are proposed on any structure.**
- **Common open space of 141,089 SF (3.24 acres) in eight common tracts — 33.8 percent of the GIS area and 34.3 percent of the 9.44-acre deeded area** (basis: the sum of the tract areas tabulated on Sheet C-2.0 and Sheet C-6.0 — the 46,777-SF front amenity tract, two 10,000-SF pocket greens, the 9,312-SF terminus green, two 20,000-SF pond tracts, the 20,000-SF creek-woods tract and a 5,000-SF stream-setback tract on the southwest side), plus approximately 41,000 SF of recorded buffer easement on the rear 20 feet of the perimeter lots, which is reported separately and is not counted in that percentage. Of the common open space, about 13,960 SF is built or paved — the 2,400-SF clubhouse roof, 3,600 SF of court pads, the 160-SF mail kiosk, a 600-SF walk allowance and the 7,200 SF of hammerhead turnaround legs that fall inside the greens; the balance, 127,129 SF (30.5 percent of the GIS area), is green. **No open space is required of this development at all:** Table 4.1's open-space entry points to §5.9 of the Development Regulations, which is titled "Recreation Areas" and applies only to single-family detached subdivisions "having a gross area of 50 acres or more." At 9.44 acres this subdivision is not within it, so all of the open space offered here is voluntary.
- **Two phases:** Phase 1, 24 lots in the front 980 feet (the phase line stands at station 980, where the ground turns up toward the ridge), served by gravity to the sewer main that already crosses the property; Phase 2, 17 lots in the rear, which cannot be built until the sewer route described in Section 7 is settled.

The plan appears consistent with the dimensional standards of Table 4.1 (R-2), the §602 use table, the §319 frontage rule and the Table 8.1 parking standard, and with the design criteria of Table 4.2 subject to the two items identified in Sections 3 and 5. A

standard-by-standard tabulation is included in the Development Summary submitted with this application.

3. Access, the private lane, traffic and fire access

Access. The community will have one vehicular entrance on Arcado Road, a county-maintained two-lane minor collector posted at 35 mph. The entrance is placed in the southwest third of the frontage so that its centerline is approximately 251 feet from the centerline of Arcadia Place (251.2 feet measured along the Arcado Road centerline, 250.7 feet as a straight chord). Arcadia Place meets Arcado Road about 61 feet northeast of the site's northeast front corner and therefore cannot be aligned with our driveway. The 251-foot separation appears consistent with **Gwinnett County Unified Development Ordinance §900-40.5, Table 900.3**, which requires 244 feet centerline-to-centerline at a posted speed of 35 mph, and **§900-40.5(C)** independently limits this frontage to one driveway ("one for each 400 feet of property frontage, or fraction thereof"; the frontage is about 237 feet). **UDO §900-40.4, Table 900.2** requires intersection sight distance of 390 feet in each direction at 35 mph on a two-lane road; the sight lines are drawn on Sheet C-2.3 and will be certified by a Georgia Professional Engineer [field certification: VERIFY]. The entrance throat is 24 feet wide, with a 25-foot curb return on the northeast side and a 15-foot return on the southwest side (reduced to keep it out of the perimeter buffer — Section 5). No lot will have a driveway onto Arcado Road, and both existing residential drives are closed and removed — the 4541 drive at the frontage and the drive that runs back through the property to 4535 [alignments to be located by the boundary survey]. Under **Gwinnett DOT Criteria and Guidelines for Left Turn Lanes (June 20, 2007), Table 1**, a left-turn lane on a two-lane route posted at 30–35 mph with ADT of 6,000 or more is warranted at 75 lots; at 41 lots one is not warranted. A Gwinnett DOT driveway/encroachment permit will be obtained before land disturbance.

Private lane. A single private lane approximately 1,754 feet long (measured along the travelled way from the Arcado Road right-of-way, entry drive included) runs the length of the strip in a tract 35.9 to 46.1 feet wide (60 feet through the amenity block, where the guest and mail-kiosk bays sit in it), with 22 feet of pavement, a 2-foot strip and a 5-foot sidewalk on the northeast side, and sidewalks on both sides from about 530 feet in, where the tract reaches 37.3 feet and can carry the 36 feet that two walks need (22 + 2 + 5 + 2 + 5). Design speed is 15 mph. Parking is prohibited on the lane; each home provides 4 spaces (2 in the garage and 2 in the driveway), **164 in total against the Table 8.1 requirement of 2 per dwelling — 82 spaces (2 × 41) —** plus 12 guest and mail-kiosk spaces in bays (8 guest spaces, one of them accessible, and 4 short-term spaces at the kiosk). All components of the private lane will be built to the City's minimum standards for public streets, as the Site Development Plan Review Checklist requires.

Blocks and turnarounds. Table 4.2 asks for block widths and lengths not exceeding 600 feet and provides that "circular turnarounds shall not be permitted except in the most unusual circumstances." Because the strip has one public frontage, no abutting street at the rear and a width of only 235 to 246 feet, no cross street is possible; the lane therefore ends in hammerhead (T) turnarounds 20 feet wide with 60-foot legs rather than a circular cul-de-sac, and the turnarounds have been re-spaced so that the runs of lane between the Arcado Road entrance and the three T-legs are approximately 594, 570 and 580 feet — each within the 600-foot Table 4.2 figure. The three T-legs stand at stations 594.5, 1,164.5 and 1,744.5 measured along the travelled way (540, 1,110 and 1,690 feet along the strip), each 20 feet wide with 60-foot legs. I state plainly that this is the reading of "block" that the site allows: measured strictly between intersections with other *streets*, the lane is a single 1,754-foot block, and to that extent I ask the Council to find the strip's shape to be the "unusual circumstance" Table 4.2 contemplates. The reading used is stated on Sheet C-2.0.

Fire access. The lane is a dead-end fire apparatus access road longer than 750 feet. Under **IFC 2024 as adopted and modified by Ga. Comp. R. & Regs. 120-3-3-.04, Appendix D, Table D103.4**, a dead end "over 750" feet requires "special approval" by the fire code official, and the table pairs dead ends of 501 to 750 feet with a 26-foot width against the 22 feet proposed here. Special approval and width relief will therefore be sought from the Gwinnett County Fire Marshal (the City has no fire department), and Appendix D107.1 Exception 3 as modified by the same Georgia rule supplies the menu of alternatives the Fire Marshal may accept — enhanced turning radii, increased road widths, D103.6 fire-lane signage, an additional non-vehicular all-weather access road designed by a registered design professional to Appendix D loading, or the Fire Code Official's written statement — together with the waiver route of O.C.G.A. §25-2-12(e)(4), on which the State Fire Marshal must respond within 30 days.

A correction I want to make plainly: an earlier version of this proposal stated that a second access road is required because the development exceeds 30 dwelling units. That is the model IFC text, not the law in Georgia. **Ga. Comp. R. & Regs. 120-3-3-.04 replaces Appendix D107.1 with a threshold of more than 120 dwelling units:** "Developments of one- or two-family dwellings where the number of dwelling units exceeds 120 shall be provided with two separate and approved fire apparatus access roads." At 41 units this development **does not trigger the two-access requirement at all**. I therefore do not claim that sprinklers are a required mitigation. **NFPA 13D residential sprinklers in every home are offered voluntarily** (condition 5) as additional life-safety protection on a long single-access lane and because they halve the required fire flow under IFC 2024 Appendix B §B105.1 from 1,000 gpm to 500 gpm on a dead-end water main. Whether they buy the 22-foot width relief is the Fire Marshal's decision, and I will ask him for it in writing before the Planning Commission hearing [VERIFY].

Traffic. Using ITE *Trip Generation Manual*, 11th ed., Land Use Code 251 (Senior Adult Housing – Single-Family), 41 homes generate on the order of **12.3 trips in the PM peak hour** (0.30 trips per unit × 41) and about 177 trips per day (4.31 per unit × 41). Two fewer lots take about 0.6 of a trip off the evening peak; the conclusion below was already comfortable and is now more so. The published rate for this land use is not settled in the sources available to me: compilations in circulation give 0.20 to 0.34 trips per unit in the AM peak and 0.26 to 0.39 in the PM peak, and the 11th edition renamed and re-scoped the land use (the old "Senior Adult Housing – Detached" was merged into LUC 251 "Senior Adult Housing – Single-Family"), so several tables that carry an "11th edition" label are in fact keyed to earlier data. The traffic engineer will read the rate off the manual itself. **The conclusion does not turn on which rate is used:** across the published range the 41 homes generate about 11 to 16 PM peak-hour trips (0.26 and 0.39 per unit) and 8 to 14 in the AM peak, and even at the 47-unit cap of condition 2 and the highest rate the figure is about 18 — inside Gwinnett DOT's lowest band (0–20 peak-hour trips) in every case.

A traffic impact study is required and will be submitted. Gwinnett DOT's *Traffic Impact Study Guidelines* (2023) state that "a TIS must be submitted concurrently with all zoning applications and land disturbance development," and the only residential exemption is for "single-family detached and townhome residential development consisting of no more than seven lots or units." At 41 lots this project is not exempt. Because the site generates 0 to 20 peak-hour trips, the study is a **Level 1** study: location description, existing and proposed land use, trip-generation estimate, access-management review, adjacent access spacing upstream and downstream, intersection sight distance, connectivity and circulation review, functional classification, posted speed and future programmed projects. Operations analysis, turn-lane warrant analysis and signal warrants begin at Level 2 and are not part of it. I also record that the 2017 GDOT count for Arcado Road that earlier drafts of this application cited (station 135-6689, 14,800 AADT) **does not satisfy Gwinnett DOT's own currency rule**, which accepts counts "less than two years old" and otherwise makes "the developer responsible for obtaining new, 24-hour counts, from an approved contractor." New 24-hour counts have therefore been commissioned and will be the basis of the study [count date: VERIFY]. The guidelines are written for unincorporated Gwinnett County; I ask staff to confirm the City's own expectation for a city zoning case, and Gwinnett DOT will apply them at the driveway-permit stage on its own road in any event. This commitment is offered as condition 17.

Sidewalks and transit. A 5-foot sidewalk and 10-foot landscape strip will be built along the Arcado Road frontage. Ride Gwinnett Route 25 stops at Killian Hill Road and Arcado Road, 0.30 mile from the site; I ask that the City consider sidewalk gap closure between the site and that stop as part of its Arcado Road pedestrian improvements.

4. Amenity block and community design

The front of the site, behind the 50-foot Arcado Road building setback, is a common amenity tract of 46,777 SF containing a clubhouse of approximately 2,400 SF (40'-0" × 60'-0"), a village green, two pickleball courts (each a 20'-0" × 44'-0" court on a 30'-0" × 60'-0" fenced pad, unlighted), a cluster-mailbox kiosk with 4 short-term spaces, 8 guest spaces, a monument entry sign of not more than 32 SF standing 19.0 feet from the Arcado Road right-of-way, and the 10-foot landscape strip along Arcado Road. No lot fronts Arcado Road; the nearest structure to the Arcado Road right-of-way is the clubhouse at **114.8 feet measured perpendicular to the right-of-way line**, well beyond the 50-foot collector setback of Table 4.1. (An earlier draft of this letter reported that distance as 110 feet and the site-plan data as 120 feet; both were measured along the axis of the strip rather than perpendicular to the right-of-way, and 114.8 feet is the correct figure.) Two pocket greens of 10,000 SF each and a 9,312-SF terminus green at the northwest end break up the lane. The community will not be gated.

5. Buffers — one reduction requested, and how the buffer is held

The standard offered. Table 4.1 sets the buffer abutting R-1 property at 0 feet for detached single-family dwellings in R-2 and 20 feet for "all other allowed dwelling types." Because Table 4.1 lists the cottage home separately from detached single-family, I have designed to the more protective 20-foot standard and offer it as condition 4: a 20-foot undisturbed buffer along every property line except the Arcado Road frontage — that is, along the King David Manor line, the Legends at Parkview line and the Nantucket Drive line.

The reduction requested. Application Instructions item (6) requires this letter to state any buffer reduction requested, and there is one. Where the single entrance meets Arcado Road, the **southwest curb return** clips the corner of the 20-foot buffer band at the right-of-way. The return radius has already been reduced from 25'-0" to 15'-0" to minimize it, and the entrance cannot be shifted northeast because doing so would erode the 251-foot separation from Arcadia Place against the 244-foot Gwinnett standard. What remains is a reduction of the buffer to a **minimum of 18'-0" instead of 20'-0" — an encroachment of 2.0 feet at the tangent point of that curb return on the right-of-way line**, as dimensioned on Sheet C-2.3. The corrected drawing measures the area of curb return that actually falls inside the buffer band at about 0.1 SF, because the return only grazes the band at the right-of-way and pulls clear of it immediately behind. **I request that reduction, stated as a residual buffer width of 18'-0" at that one point.** It occurs at the point on the property farthest from any dwelling on the abutting lot (303 Fieldhouse Circle SW), it is in the plane of an existing county road, and the buffer stands at its full 20-foot width everywhere else on all three interior lines. Apart from that one point, no buffer reduction is requested. If final engineering of the entrance clears the buffer band entirely, the reduction will not be taken.

How the buffer is held — an interpretation I ask the Director to confirm. Lilburn Zoning Ordinance 2023-603 §313(1) provides that buffer requirements "supersede these minimum required yards." The site plan reads that provision to allow the 20-foot buffer to lie within the 20-foot rear yard of each perimeter lot, held in a buffer/conservation easement recorded on the final plat in favor of the homeowners' association and the City, with no structure, grading or clearing permitted within it. That reading is what allows 100-foot-deep lots on both sides of one lane inside a strip 235 to 246 feet wide. At the first pair of lots, 230 feet in, the strip measures 235.9 feet across: two 100-foot lots leave 35.9 feet for the lane tract, and the section is spent exactly — the 35.9-foot tract is the narrowest on the lane and holds the 22-foot pavement, the 2-foot strip and the 5-foot sidewalk with 6.9 feet to spare for grading. The tract widens to 46.1 feet at the northwest end as the strip widens. The rear-most structure on each lot stands 20'-6" (Plan A patio edge) to 20'-10" (Plan B rear porch) from the rear lot line, so no structure lies within the buffer easement.

I present that as an interpretation, not as settled law. §313(1) speaks of "buffer requirements established by *this article*" — Article 3 — and Article 3 sets no buffer widths; the district buffers of Table 4.1 are imported by §318. Nothing in the ordinance expressly authorizes holding a required buffer inside a private lot. I ask the Planning Director and the City Attorney to confirm the reading at the pre-application conference, and I have prepared the fallback so that the answer does not have to be discovered at a hearing.

The fallback if staff reads the buffer differently. If the buffer must be held in a separate common tract rather than in an easement on the lots, the same plan is built with lots of 50'-0" × 82'-0" (4,100 SF, above the 3,000-SF cottage-home minimum) and a concurrent variance under §1005 from the 100-foot minimum lot depth of Table 4.1, on the ground of the strip's exceptional narrowness (§1005-3.2 criteria a–g). That layout is drawn as Sheet C-2.4 so the Commission and Council can see exactly what the alternative looks like. I would prefer to resolve the interpretation before filing so that the application is heard without a variance, and I ask staff's guidance on that point.

6. Stormwater and environmental features

- **Floodplain.** The site is in FEMA Zone X (no special flood hazard area) per Gwinnett County GIS; no floodplain or floodway development is proposed (Table 4.2) [FIRM panel and effective date: VERIFY].
- **Stream buffer.** An unnamed headwater of Jackson Creek reaches the southwest line about 1,356 to 1,392 feet from Arcade Road and ends about 30 feet inside the site. The site plan shows the 25-foot state-waters buffer (O.C.G.A. §12-7-6(b)(15), measured from the point where vegetation has been wrested by normal stream flow) and the City's 50-foot undisturbed buffer and additional 25-foot impervious setback (75 feet total, measured from the top of the bank) as separate lines, because they are measured from different data. A 20,000-SF creek-woods common tract preserves the stream head and its buffers, and a further 5,000-SF unlotted tract on the southwest side (station 1,230 to 1,280) holds the ground that a lot occupied until the layout was corrected: on 2026-09-03 every lot was re-screened against all three digitized reaches of the stream, and one lot fell inside the buffer and was withdrawn. A field study will establish **first whether and where a regulated stream begins** — the ordinance's definition begins a stream at a spring or seep that sustains streamflow, or at the point where the drainage area reaches 25 acres, and the on-site reach drains far less than 25 acres — and then the top of bank. The rear lot count and the Pond 2 footprint depend on that study, and it will be done before the land-disturbance permit [VERIFY]. The layout carries a 5-foot allowance for the top-of-bank location, so the plan is measured to 80 feet from the mapped channel rather than 75. On that measure the nearest lot line stands 80.6 feet from the digitized channel, the nearest dwelling 106.2 feet, the nearest driveway 102.6 feet, the nearest pond top of bank 80.2 feet and the lane pavement 80.5 feet — that is, every impervious surface on the plan is at least 80.2 feet from the mapped channel, or 75.2 feet after the top-of-bank allowance is taken off. The receiving stream is on Georgia's 2024 303(d) list (bacteria and biota, urban runoff), so the design emphasizes runoff reduction and water-quality treatment, with no direct discharge into the buffer.
- **Detention and water quality.** Two dry detention and water-quality ponds are shown on the southwest side, one in the mid-site swale and one near the rear low pocket outside the 75-foot stream setback. Sizing is on the basis used in the 2025 hydrology study for this property: 10,000 cubic feet of detention per **disturbed** acre, less any runoff-reduction volume credited. The disturbed area has been recomputed from the plan as 328,484 SF = **7.541 acres** (the site raster less the 20-foot perimeter buffer bands, the creek woods and the undisturbed stream buffer, unioned so nothing is counted twice), not the 4.4 acres an earlier draft assumed. At 10,000 cubic feet per disturbed acre that is a screening requirement of **75,410 cubic feet** with no runoff-reduction credit taken, against **77,863 cubic feet provided** — Pond 1 at 33,129 cubic feet (52'-0" × 180'-0" at top of bank) and Pond 2 at 44,734 cubic feet (64'-0" × 180'-0"), both 6 feet deep on 3:1 side slopes, in 20,000-SF tracts. Provided storage is therefore about 103 percent of the requirement, and a runoff-reduction volume of about 15,500 cubic feet ($R_v = 0.05 + 0.009 \times 44.1 = 0.447$; $0.447 \times 1.0 \text{ in} \div 12 \times 417,174 \text{ SF}$) would reduce the requirement further if the credit is earned. **This is the second of the two corrections that took the plan from 43 lots to 41:** the basins had been sized on 4.4 disturbed acres, the real figure is 7.541 acres, and the enlargement needed to hold 77,863 cubic feet took the land one lot had occupied. The lot count follows the drainage design, not the other way round. Final sizing, the runoff-reduction credit and the water-quality volume ($WQ_v = 1.2 \times (0.05 + 0.009 \times 44.1) \div 12 \times 417,174 \text{ SF}$ = about **18,659 cubic feet**) will be by a Georgia PE under the Gwinnett County Stormwater Management Manual at the land-development-permit stage [DRAFT — to be superseded by

sealed work]. Discharge will be only to the existing drainage courses, not onto the yards of adjoining lots.

- **Impervious cover. 184,148 SF — 44.1 percent of the GIS site area, 44.8 percent of the deeded area** (basis: 86,448 SF of dwellings, garages, porches and patios; 31,390 SF of lot driveways and entry walks; 34,111 SF of lane pavement; 4,865 SF of entry drive; 184 SF of curb returns; 7,200 SF of hammerhead legs; 2,070 SF of guest and kiosk bays; 14,619 SF of sidewalks; 6,760 SF of clubhouse roof, court pads, kiosk and amenity walks; less 3,500 SF of driveway-apron and sidewalk overlap counted twice — the per-lot figures are the actual footprints from the architectural plan set, 2,752 SF for Plan A and 2,898 SF for Plan B, not a flat allowance). Earlier drafts of this application reported 38.4 percent; that figure rested on a flat 2,200-SF-per-lot allowance in the site-plan generator and understated the real area by about 24,000 SF. The corrected figure is stated here because the stormwater design depends on it, and because it is still far below the 50 to 57 percent per basin shown on the 2025 mixed-use hydrology sheet for this same land.
- **Soils and topography.** NRCS mapping shows Piedmont clays (Appling, Madison, Pacolet and Cecil-type units), Helena sandy loam (hydrologic group D, seasonal high water table about 24 inches) at the front southwest corner under the amenity block and sewer tie-in, and Ashlar (gneiss bedrock at 22 to 40 inches) under both pond sites; rock probes and an undercut allowance will precede final pond design. No mapped unit on the site is rated hydric. Elevations range from about 922 to 958 feet (USGS 3DEP; VERIFY by field survey), with a ridge about 1,080 to 1,200 feet in and the low pocket near the stream head. Existing ground along the lane reaches 10.9 percent at about 1,494 feet in, below the 12 percent maximum for street grades, but the finished profile is a PE item and is not claimed here.

7. Sanitary sewer and water

This is the part of the application where I want to be exact, because the answer changed when I read Gwinnett County's own policies rather than a summary of them.

Existing sewer on the property. An 8-inch Gwinnett County gravity main — the "Arcado Road Townhomes sewer outfall" — already crosses the property. It runs from Arcado Road along the southwest edge of Parcel 6123 033, 7 to 13 feet inside the property line, for about 314 feet, to a manhole about 272 feet in with a **927.13-foot invert**, and then leaves the site to the southwest. This is the "EX. 20' SSE" shown on the 2025 hydrology sheet. The inverts are GIS attributes and are unsurveyed; a field invert survey is the first money I intend to spend [VERIFY].

Phase 1 (24 lots, the front 980 feet): gravity, and no sewer extension of any kind. The front reach of the lane drains by gravity to that on-site manhole. The controlling reach is the lane sag about 780 feet in to the manhole: 615 feet of pipe falling from a 931.3 invert to 927.13, a slope of **0.68 percent**, against a 0.40 percent minimum. **Phase 1 requires no extension of the public sewer system.** It connects to a main that is already inside the property line. Phase 1's average daily flow is about 6,420 gpd (24 lots × 250 gpd per unit plus a 420-gpd allowance for the clubhouse).

Phase 2 (17 lots, the rear pocket): one route, and it is not the one earlier drafts of this application described. The rear low point of the lane is about 1,479 feet in at elevation 931.5; an invert there with 5 feet of cover is at 926.5, which is already 0.6 feet *below* the 927.13 manhole before any pipe slope is applied, and any pipe to that manhole would have to pass beneath the ridge at 1,080 to 1,200 feet at roughly 28 feet of cut. The rear pocket cannot be served by gravity to the on-site main.

Earlier drafts presented an in-tract homeowners'-association lift station, or individual grinder pumps, as the primary answer for Phase 2. **That option is not available, and I withdraw it.** Gwinnett DWR's *Standard Policy for Private Developments: Condominiums, Townhomes and Subdivisions* (rev. 9/2018) — the policy variant whose cover names subdivisions — states:

"PRIVATE FACILITIES: Private pump stations, private force mains and private gravity sewers are only allowed for commercial properties under single ownership within a development. Gwinnett County is not responsible for operation and maintenance of these facilities."

and immediately above it:

"OWNERSHIP OF MAINS AND APPURTENANCES: Absolute title and ownership of all water and sanitary sewer mains within the private development shall be conveyed to Gwinnett County WSA at the time of acceptance by the County."

A 41-lot fee-simple subdivision is not a commercial property under single ownership, so a homeowners'-association station, force main or private gravity sewer is not permitted here. A **county-owned** station is equally unavailable: Gwinnett DWR's *Developer Pump Station Standards* (January 2014, posted as WSR-24) §1.3.1(A) provides that

"Generally, pump stations will only be permitted when gravity sewer is unavailable to the property. Unavailable shall generally be interpreted to mean more than 5,000 feet down gradient, but this distance can be increased or decreased by GCDWR Division Directors based upon actual field conditions and the size of the project involved."

Gravity is 178 feet away, not 5,000. And there is no Gwinnett standard for grinder pumps or a low-pressure sewer system at all — the words do not appear in the County's *Water and Sewer Standards* (April 2016) or in WSR-24 — so such a system could only be private, which the first policy forecloses.

The only viable Phase-2 route is therefore a gravity connection. From the rear low pocket, an 8-inch gravity line runs southwest to the existing **Legends at Parkview 8-inch main at invert 919.58**: about 478 feet in total, of which approximately **178 feet is off-site**, falling from 926.5 to 919.58 at about **1.45 percent** — a comfortable gravity slope. Phase 2 adds about 4,250 gpd (17 lots × 250 gpd), so the completed community's average daily flow is about **10,670 gpd** (41 units × 250 gpd plus the clubhouse), roughly 7.4 gpm, with a peak of about 42,680 gpd at a peaking factor of 4 [unit flow and peaking factor to be confirmed with Gwinnett DWR: VERIFY]. It needs three things, and I ask the City to treat them as conditions of approval rather than as a barrier to the rezoning:

1. **A recorded permanent sewer easement** across one Village Green Court lot or along the stream corridor, which I must negotiate and which the City cannot grant.
2. **A Gwinnett DWR sewer capacity certification** covering that route. The request is made on DWR's *Sewer Capacity Certification Request* form (Rev. 07/2023), which has a "Pre-Rezoning" request type, must be signed and sealed by a design professional, and takes 10 business days, or 30 if flow monitoring is required. The written question I am submitting on that form is set out in the Technical Memoranda, Memo B.
3. **A reading of the comprehensive-plan sewer policy.** The 2026 Comprehensive Plan Amendment, which has been transmitted to the Department of Community Affairs but is not yet adopted (Section 9), carries for the Suburban-Low area the policy "Do not further extend sewer in this area" (p. 73). Phase 1 does not implicate that policy at all: it extends nothing and uses a main already on the property. Phase 2 is a 178-foot connection between two existing county mains inside the same sewer basin and adds no service area beyond this property. Whether the City reads the policy as reaching such a connection is a question of policy interpretation for staff and Council, and I ask for that reading in writing.

And if the answer is no. Phase 1 stands on its own. It is 24 lots, the amenity block, Pond 1 and the entrance, all served by gravity to the existing main, and it needs nothing from Phase 2. I ask for R-2 on the whole tract with condition 15 (phasing) and condition 16 (sewer) attached: Phase 2 cannot begin until the easement is recorded and DWR has certified the route, and if either fails the rear of the property is not built. That is a stronger commitment than a lift station would have been, and it is one the City can enforce.

Water. Ductile-iron and asbestos-cement mains lie in Arcade Road 47 to 107 feet from the front line, and the nearest hydrant is about 61 feet from the front corner. An 8-inch main is proposed for the full length of the lane. Because there is no second frontage, it cannot be looped; DWR may require an automatic flushing device or a terminal blow-off, and the hydraulic check is DWR's flow test at the Arcade Road hydrant [static and residual pressures: VERIFY]. Fire flow is 1,000 gpm for one hour under IFC 2024 Appendix B, Table B105.1(1), reduced by half to 500 gpm if the voluntary NFPA 13D sprinklers of condition 5 are installed. Hydrants are spaced at about 400 feet per Gwinnett DWR Standards (2016) §2.2.15.

8. Schools, services and fiscal effect

As an age-restricted community under the Housing for Older Persons Act, the development generates no public-school students; the Gwinnett County Public Schools cluster for the site is Camp Creek Elementary, Trickum Middle and Parkview High. By comparison, the July 2025 School Impact Analysis filed with the 2025 mixed-use case projected students from 104 condominiums at a time when Camp Creek Elementary and Parkview High were reported above capacity [VERIFY the 2025 study's figures before citing them]. I will ask GCPS Planning for a fresh letter confirming zero students for this program and stating the by-right R-1 baseline for comparison. Fire protection is by Gwinnett County Fire and Emergency Services; police protection by the City of Lilburn. Forty-one owner-occupied homes will add to the City and County digests; the adjoining 2026 digest medians are \$349,200 (King David Manor) and \$693,500 (Legends at Parkview), and the cottage product is expected to be priced between those figures — at \$420,000 to \$460,000 a home, 41 homes are roughly **\$17.2 to \$18.9 million** of new fair market value against the \$1.27 million the four parcels carry today [pricing and digest treatment: VERIFY against the current pro forma].

9. Why R-2 is the compatible district, and how this differs from the 2025 case

Zoning ordinance. Lilburn Zoning Ordinance 2023-603 §402-1 states that the R-2 district is intended for "moderate density uses consisting primarily of detached single-family uses," that "clustered and cottage housing types and other creative, flexible small lot development designs" may be appropriate, that R-2 is to be located "where there is convenient access to collector streets," and that the district "generally corresponds to the ... Comprehensive Plan Character Area designation of 'Established Residential.'" The §203 compatibility table maps the Established Residential character area to R-1 and R-2. The site is on a collector, is in Established Residential, and adjoins an existing R-2 district about 106 feet away.

Why the map amendment is necessary. I want to state this accurately, because an earlier draft of this application overstated it. §602 lists **"Single-family (cluster-cottage, creative lot configuration)" as a permitted use in R-1 as well as in R-2.** The bar in R-1 is dimensional, not a use prohibition: Table 4.1 provides no cottage-home minimum lot size and no cottage-home minimum lot width in R-1 ("N/P"), so the 3,000-SF, 50-foot cottage-home lot standard exists only in the R-2 column, and R-1's 9,000-SF, 80-foot standard cannot produce this product on a strip 235 feet wide. That is the reason for the request.

Comprehensive Plan — the adopted plan. The **2024 Comprehensive Plan is the adopted plan and governs today.** It places the site in "Established Residential," which it describes as single-family and double-family houses where "higher density development will generally not be encouraged" and where infill parcels "offer opportunities for some variety" (printed p. 35, PDF p. 37). At 4.34 du/ac of detached one-story houses, this proposal is the modest variety the plan describes — below the R-2 maximum of 8 du/ac and far below the 11 du/ac of the 2025 filing — and §203 of the zoning ordinance maps Established Residential to R-2, so **the request is consistent with the adopted plan as it stands.** The 2024 plan also carries work item H.03: "Incentivize accommodations for aging population and elements of visitability (accessible living, masters on main) within all medium and high density residential districts" (printed p. 47). R-2 is the medium-density residential district, and every home in this proposal is one story with a zero-step entry, 36-inch doors and grab-bar blocking.

Comprehensive Plan — the 2026 Amendment, and its status. The 2026 Comprehensive Plan Amendment is **not yet adopted.** The City Council held the public hearing and approved transmittal to the Georgia Department of Community Affairs on **2026-07-13**; the Atlanta Regional Commission's report window under Ga. Comp. R. & Regs. 110-12-1 closed on or about 2026-08-23, so adoption may be calendared at a regular Council meeting — 2026-09-14, 2026-10-12 or 2026-11-09 are the next opportunities [adoption date: VERIFY with the City Clerk]. It may well be adopted before this case is heard. **The request is consistent with the amendment either way.** The transmitted draft (dated 6/16/2026) places the residential properties south of the railroad in "Suburban-Low," whose land-use chart (p. 73) lists **Single-Family Cottages and Single-Family as "Appropriate"** and lists Mixed Use (vertical and horizontal), Multifamily, Office, Retail/Entertainment, Hotel/Motel, Flex/Light Industrial and Auto-oriented Retail as **"Not Appropriate,"** and whose zoning strategies call for allowing "a modest variety of housing types, including single-family cottages and infill," requiring sidewalks and improving street and block connectivity. Under the draft's own vocabulary (p. 54), a "Single-Family Cottage" is a house "typically 1,200 square feet or less" and "Single-Family" is a house "typically exceeding 1,200 square feet"; at 1,406 and 1,492 SF these homes are "Single-Family," which is likewise "Appropriate." The neighboring Suburban-Medium class (p. 71) also rates both categories "Appropriate." The Future Development Map is at p. 52 and is a raster without parcel labels; I ask staff to state in writing which class these four parcels fall in, because the two classes carry opposite sewer policies (Section 7). Whichever class applies, and whether the amendment is adopted before or after this hearing, the use proposed here is one the plan calls appropriate.

The 2025 case. In July 2025 I filed RZ-2025-01 for these parcels, requesting a Mixed-Use district for 104 condominium units and 13 commercial buildings totaling 24,400 SF. The Planning Commission tabled that case on August 28, 2025 because of a defective legal advertisement; it was never heard, no staff report or recommendation was issued, and no denial occurred, so the 12-month bar of §1003-11 does not apply [formal disposition of RZ-2025-01: VERIFY in writing with the Planning Director]. That program is retired — and the 2026 draft's own chart would rate it "Not Appropriate" here. I heard the neighborhood's objections to it (traffic, school and utility capacity, stormwater, and loss of single-family character) and this application is a different proposal in kind: single-family detached houses only, 41 rather than 104 units, no commercial floor area, one story, age-restricted, and buffered from its R-1 neighbors by the most protective buffer the table provides.

One point I do not want to be seen to have skipped. The 2024 plan's public survey is cited in support of horizontal density — "a majority of participants (64%) indicated a desire to see an increase in the number of housing units through a Horizontal Density Increase (Accessory Dwelling Units, Cottage Courts, Minimum Lot Requirement Reductions, etc.)" (p. 10). The very next sentence on that page reports that "a majority of participants (59% each) indicated Lilburn has the Right Amount of Senior Housing and Need(s) Less Medium- and High-Density Housing." Both sentences are in the record and both will be read at the hearing. My answer is that the 2023–24 opinion survey has been overtaken on this point by the City's own 2026 amendment, whose stoplight chart rates Single-Family Cottages and Single-Family "Appropriate" in this exact area, and by the market: the Cottages at Noble Village, Lilburn's only detached 55+ product, is sold out.

10. Community engagement

Since 2025 I have maintained a public project website (arcado-springs.vercel.app) with a browser-based three-dimensional walkthrough of the site and a moderated comment board on which neighbors can post questions and comments. That site presented the 2025 mixed-use concept; in August 2026 I added a cottage concept-study page with the two floor plans and renderings, and the public site will be updated to this cottage proposal before the application is advertised [VERIFY that the update is complete]. I am aware of the 2025 petition opposing the mixed-use case and its stated concerns, and Sections 3 through 8 of this letter respond to each of them with numbers. I will meet with the King David Manor, Legends at Parkview and Nantucket neighbors before the Planning Commission hearing and will attend both the Planning Commission and City Council hearings.

11. Voluntary zoning conditions

Under Lilburn Zoning Ordinance 2023-603 §1003-4(5), I voluntarily offer the following **18 conditions** and ask that they be made conditions of any approval. The list is identical to `data/voluntary-conditions.md` and to Section 9 of the Development Summary. The site plan shows 41 lots; condition 2 states a maximum of 47 so that the sealed boundary survey and final engineering can be absorbed without a change in conditions.

1. **Age restriction.** The development shall be operated as housing for older persons (55+) under 42 U.S.C. §3607(b)(2)(C) and 24 CFR §100.300–.308, with a recorded declaration, published policies and biennial verification (24 CFR §100.307(c)), enforceable by the City of Lilburn. At the 41 units shown, the 80-percent occupancy test of 24 CFR §100.305(a) together with the fractional-unit rule of §100.305(g) ($0.80 \times 41 = 32.8$, and the fraction counts into the 80 percent) requires **at least 33 of the 41 units** to be occupied by at least one person aged 55 or older, leaving at most 8 units that need not be; the declaration shall state that figure and shall recompute it if the unit count changes. Advertising and community documents shall not use "adult living," "adult community" or similar phrases (24 CFR §100.306(b)).
2. **Maximum units.** Not more than **47** detached single-family cottage homes (**41 shown**); no attached, multifamily, commercial or non-residential use other than the clubhouse and amenities serving residents.
3. **Height.** All dwellings one story; maximum ridge height 24 ft above finished grade (the plans as drawn on Sheets A-2.1 and A-2.2 are 17'-10" for Plan A and 19'-0" for Plan B above finished floor, i.e. 18'-6" and 19'-8" above finished grade at the front, finished floor being 8 in above grade); clubhouse one story.
4. **Buffers.** A 20-ft undisturbed buffer along all property lines abutting R-1 property (SW, NE and NW lines), held in a recorded buffer/conservation easement where it lies within lots and in common tracts elsewhere; supplemental evergreen planting where existing vegetation is sparse; no structures, fences or grading in the buffer except (a) approved pond and utility encroachments not exceeding 50 ft in perpendicular width and (b) **the single buffer reduction requested in the Letter of Intent §5 and dimensioned on Sheet C-2.3 (entry enlargement, to be issued with the filed set) — at the tangent point of the southwest curb return of the entrance on the Arcade Road right-of-way, where the buffer narrows to a minimum of 18'-0" instead of 20'-0", a reduction of 2.0 ft measured along the right-of-way affecting 0.1 SF of pavement.** The buffer is at its full 20-ft width everywhere else on the southwest, northeast and northwest lines. No other buffer reduction is requested, and none shall be taken without an amendment to these conditions.
5. **Fire sprinklers — voluntary offer.** Every dwelling shall be equipped with an NFPA 13D residential sprinkler system and the clubhouse sprinklered as the building code requires, with systems maintained under the HOA covenants. This is offered **voluntarily**: at 41 units the two-access requirement of IFC 2024 Appendix D107.1 as modified by Ga. Comp. R. & Regs. 120-3-3-.04 (which raises the trigger to more than 120 dwelling units) is not engaged, and sprinklers are therefore additional protection and a 50-percent fire-flow reduction (IFC 2024 Appendix B §B105.1), not a required mitigation. The applicant asks that this condition be accepted as offered; if the Gwinnett County Fire Marshal states in writing that sprinklers are unnecessary, the condition may be released by the Fire Marshal's written concurrence and City staff's approval without a further public hearing.
6. **Single access.** One driveway on Arcade Rd, located in the SW third of the frontage; no gate.
7. **No Arcade Road driveways.** No individual lot shall have direct vehicular access to Arcade Rd.
8. **Architectural standards.** Exterior walls of fiber-cement lap and board-and-batten siding with brick or stone water table/piers; architectural-shingle roofs with 8:12 main and front-wing gables, the front-wing gable carried forward to roof the covered front porch, and a 6:12 gable over the garage; front-loaded garages recessed ≥ 5 ft behind the front wall; covered front porches ≥ 6 ft deep; zero-step entries; floor plans, elevations and materials substantially as shown on the sheets submitted with the application — Sheets A-1.1 and A-1.2 (floor plans, Plans A and B), A-2.1 and A-2.2 (exterior elevations, Plans A and B), A-2.3 (exterior colour schemes and materials), A-3.0 (clubhouse, mail kiosk and entry monument sign) and A-4.0 and A-4.1 (typical lots); three approved colour schemes; no wall signs on any dwelling.
9. **Stream buffer.** The stream head and its 50-ft undisturbed buffer and 75-ft impervious setback preserved in a common "creek woods" tract, and the southwest area at u 1,230–1,280 that does not clear the stream screen preserved unlotted as a common stream-setback tract with no impervious cover; no lot, structure or pavement within 75 ft of the top of bank as field-delineated. The field study shall establish first whether and where a regulated stream begins (spring/seep or the 25-acre drainage-area point) and then the top of bank, and the plat shall show the 25-ft state buffer (O.C.G.A. §12-7-6(b)(15)) and the 50-ft/75-ft city lines separately.
10. **HOA maintenance.** A mandatory HOA owning and maintaining the private lane, sidewalks, stormwater facilities, buffers, common tracts, entry sign and lighting, with yard maintenance for all lots.
11. **Lighting.** Full-cutoff fixtures ≤ 3000 K; lane lighting mounted ≤ 14 ft with house-side shields facing R-1 lots; no court lighting for the pickleball courts.
12. **Construction hours.** Exterior construction limited to 7:00 AM – 7:00 PM Monday–Friday and 8:00 AM – 5:00 PM Saturday; none on Sundays or federal holidays (city ordinance governs if stricter).
13. **Tree survey and preservation.** A tree survey and preservation plan meeting Code Ch. 109 Art. V (16 TDU/ac) submitted with the LDP; preserved trees ≥ 12 -in DBH in the buffers, creek woods and stream-setback tract credited; phased clearing with immediate stabilization.
14. **Entry sign.** One monument sign ≤ 32 sf, ≤ 6 ft high, externally lit, standing about 19 ft from the Arcade Road right-of-way within the front amenity tract and outside the sight triangle; permitted separately under the sign regulations.

15. **Phasing.** Development in two phases at the **u ≈ 980-ft line** as shown on Sheet C-6.0 (phasing, block and open space exhibit, to be issued with the filed set); Phase 1 (24 lots) shall include the amenity block, Pond 1 and the first hammerhead turnaround shown on Sheet C-2.0. Phase 2 (17 lots) shall not commence until condition 16 is satisfied, and the existing dwelling at 4535 Arcade Road, which stands on the proposed lane alignment about 1,200 ft back from the right-of-way, shall be removed under permit before any Phase 2 land disturbance.
16. **Sanitary sewer.** Phase 1 shall be served by gravity to the existing 8-in Gwinnett County main already on the property (the Arcade Road Townhomes outfall, manhole invert 927.13), and requires **no sewer extension**. Phase 2 shall be served **only by a gravity connection**; no private pump station, private force main, private gravity sewer, grinder pump or low-pressure sewer system shall be proposed or built (Gwinnett DWR *Standard Policy for Private Developments: Condominiums, Townhomes and Subdivisions*, rev. 9/2018, allows private facilities "only ... for commercial properties under single ownership within a development"). No land-disturbance permit shall issue for Phase 2 until (a) a permanent off-site sanitary sewer easement for the gravity connection is recorded and (b) Gwinnett DWR has issued a sewer capacity certification covering the Phase-2 route. If either is not obtained, Phase 2 shall not be built and the Phase-2 area shall remain in its existing wooded condition or be re-platted as open space.
17. **Traffic impact study and access management.** The applicant shall submit a **Level-1 traffic impact study** prepared to Gwinnett DOT *Traffic Impact Study Guidelines* (2023) with the zoning application, based on **new 24-hour traffic counts** on Arcade Rd obtained from an approved contractor (the 2017 GDOT count does not satisfy the guidelines' two-year currency rule); shall furnish an intersection-sight-distance certification by a Georgia Professional Engineer for the single entrance (390 ft each way at 35 mph, Gwinnett UDO §900-40.4, Table 900.2); and shall obtain a Gwinnett County DOT driveway/encroachment permit before any land disturbance.
18. **Sidewalks and transit.** A 5-ft sidewalk along the full Arcade Rd frontage and 5-ft sidewalks within the lane tract as shown — on the northeast side for the full length of the lane and on the southwest side from u 530, where the tract first reaches the 36 ft that two walks require; the applicant will cooperate with the county and city on closing the sidewalk gap to the Killian Hill Rd bus stop.

12. Closing

The Cottages at Arcade Springs puts 41 one-story, owner-occupied, age-restricted houses on a strip of land that the zoning ordinance, the adopted 2024 Comprehensive Plan and the transmitted 2026 amendment all describe as the place for exactly this product: single-family, modest in density, on a collector, next to an existing R-2 district, and buffered from its R-1 neighbors by the most protective buffer the table provides. It adds no students, about 12 peak-hour trips, and no commercial floor area, and its first phase is served by a sewer main that is already inside the property line.

I have addressed the six criteria of §1003-7 in the attached Standards Governing Exercise of the Zoning Power form. I would welcome a pre-application conference to resolve, before the filing deadline: the §313(1) buffer interpretation and the buffer reduction requested in Section 5; the Phase-2 sewer route, the comprehensive-plan sewer policy and the Future Development Map class in Section 7 and Section 9; the fire-access package and the 22-foot lane width in Section 3; the traffic-study level in Section 3; and the disposition of RZ-2025-01 in Section 9. The filing deadline for the October 22, 2026 Planning Commission and November 9, 2026 City Council hearings is September 25, 2026.

I respectfully request approval of the rezoning to R-2 subject to the conditions in Section 11. Thank you for your consideration.

Respectfully,

Mohammed Awad Applicant; owner of Parcels 6123 033 and 6123 015; contract purchaser of Parcels 6123 014 and 6123 162 [contract status: VERIFY before filing]

Attachments: Rezoning Application Form; Standards Governing Exercise of the Zoning Power; Conflict of Interest Certification and Campaign Contribution Disclosure; Notarized Applicant and Property Owner Certifications; Typed Legal Description (DRAFT — pending RLS seal); Site Plan set, Sheets C-0.0 through C-8.0 (DRAFT — NOT SEALED; to be superseded by sealed work); Architectural Sheets A-1.1 through A-4.1 — floor plans, exterior elevations of every street-visible side, the colors and materials board, the clubhouse, mail kiosk and entry monument, and the typical lots; Development Summary; Technical Memoranda A–G; List of Adjoining Property Owners (31 parcels plus the Gwinnett County Arcade Road right-of-way). **Boundary Survey — to be filed when the Georgia registered land surveyor releases it; not attached to this submittal [VERIFY the Director's requirement].**

Sources: *Lilburn Zoning Ordinance 2023-603 §§203, 313, 318, 319, 402, 602, 1003, 1005, Tables 4.1, 4.2, 8.1; Lilburn Development Regulations App. B Art. 5 §5.9; City of Lilburn 2026 Application Instructions — Rezoning/SUP/CIC; Lilburn 2024*

Comprehensive Plan, printed pp. 10, 35 (PDF p. 37), 47; 2026 Comprehensive Plan Amendment, draft of 6/16/2026 transmitted to DCA 2026-07-13, pp. 52, 54, 71, 73; Ga. Comp. R. & Regs. 110-12-1; Gwinnett County GIS parcel, zoning, sewer, stream, floodplain and soils layers (queried 2026-08-28); Gwinnett Tax Assessor 2026 digest; USGS 3DEP; ITE Trip Generation Manual, 11th ed., LUC 251; Gwinnett DOT Traffic Impact Study Guidelines (2023); Gwinnett DOT Criteria and Guidelines for Left Turn Lanes (2007-06-20); Gwinnett County UDO §900-40.4 Table 900.2 and §900-40.5 Table 900.3; Gwinnett DWR Standard Policy for Private Developments: Condominiums, Townhomes and Subdivisions (rev. 9/2018), Developer Pump Station Standards (Jan 2014, WSR-24) §1.3.1(A), Water and Sewer Standards (April 2016), Sewer Capacity Certification Request (Rev. 07/2023); IFC 2024 as adopted and modified by Ga. Comp. R. & Regs. 120-3-3-.04, Appendices B and D; O.C.G.A. §§12-7-6(b)(15), 25-2-12(e)(4); 42 U.S.C. §3607(b)(2)(C), 24 CFR §§100.305–.307; RZ-2025-01 packet; site-plan data file data/layout.json and architectural data file data/plans.json.

Disclaimer: *This is an AI-generated analysis for preliminary planning purposes. All findings must be verified by a licensed professional before use in design, permitting, or regulatory submissions.*